Legal due diligence summary — Havrebakke Wind Farm PPA

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For: the investment team, Project Havrebakke

Document reviewed: Power Purchase Agreement between Havrebakke Vind ApS (Seller) and Jutland Board & Packaging A/S (Buyer), execution version dated 28 May 2026

Date of this summary: 4 June 2026

Scope: key commercial terms and bankability points only. Title, permits, grid connection and construction contracts are covered in separate memoranda.

1. Summary view

The agreement is a pay-as-produced physical PPA under Danish law with an industrial offtaker whose obligations are guaranteed by its parent. The commercial terms are within the range we see for Danish onshore wind contracted to industrial buyers. Three points deserve the committee's attention: the Buyer is unrated and the parent guarantee is the credit; the Buyer holds a curtailment right of 150 hours per year, compensated; and a change-in-law clause gives either party a termination right after a failed renegotiation, without a termination amount.

2. Key terms

Term	Our reading	Reference
Parties	Seller: Havrebakke Vind ApS. Buyer: Jutland Board & Packaging A/S, unrated. Payment obligations guaranteed by Jutland Industri Holding A/S.	Part I; Part II 9.2; Annex 4
Facility	Eight onshore turbines, 48.0 MW, Havrebakke, Ringkøbing-Skjern Municipality, DK1.	Part I; Annex 1
Supply period	The Supply Period runs ten (10) years from the Commercial Operation Date.	Part I
Commercial operation	Target COD 1 October 2027. Longstop Date 31 March 2028. Delay damages EUR 9,600 per day after the Target COD, capped at EUR 1,750,000.	Part II 3
Price	EUR 54.50 per MWh per the Election Sheet. Thirty per cent of the price is adjusted annually from 1 January 2029 by the Danish consumer price index.	Part II 7.1; Annex 2
Volume	100 % of Metered Output. Expected Annual Production 158,000 MWh (P50). Minimum Annual Production 118,500 MWh with a shortfall payment.	Part I; Part II 4
Product		Part II 8

	Electricity and all Guarantees of Origin, transferred at no additional cost. No capacity product.	
Curtailment	Buyer may instruct reductions for up to 150 hours per Contract Year, paid as Deemed Delivered Electricity at the Contract Price. Reductions instructed by the transmission system operator are not compensated by the Buyer.	Part II 5.4–5.5
Delivery and balancing	Physical delivery at the metering point on the 60 kV side of the Havrebakke substation. Buyer appoints the balance responsible party and bears imbalance costs from COD.	Part I; Part II 4.2, 5.2
Credit support	Seller: bank guarantee EUR 2,000,000 from Financial Close until twelve months after COD. Buyer: parent company guarantee plus a letter of credit equal to nine months of expected payments.	Part II 9
Default and termination	Non-payment within ten Business Days of notice, insolvency and failure to reach COD by the Longstop Date are Events of Default. Termination Amount is the present value of the difference between the Contract Price and the Reference Forward Price over the remaining Supply Period.	Part II 12–13
Change in law, force majeure	Change in Law is a defined term. A cost impact above EUR 250,000 in a Contract Year triggers good-faith renegotiation; absent agreement within 90 days the affected Party may terminate without a Termination Amount. Force majeure beyond 180 consecutive days gives either Party a termination right.	Part II 11, 10

3. Points for the committee

1. **Credit.** The Buyer is unrated. The parent company guarantee in Annex 4 is the credit the committee is relying on; we recommend the financial team reviews the guarantor's accounts for the last three years.
2. **Curtailment right.** A 150-hour Buyer curtailment right is at the upper end of what we see. It is compensated at the Contract Price, so the revenue effect is neutral, but the committee should note that the Seller has no equivalent right.
3. **Change in law.** The termination right after a failed renegotiation is mutual and carries no Termination Amount. Lenders will ask for this to be tightened; we expect a lender consent letter to be required at Financial Close.
4. **Termination Amount.** The mark-to-market formula references a "Reference Forward Price" defined by the Parties' agreement on a source. The source is named in the agreement; we have confirmed it is a published forward curve for DK1.

4. Documents relied on

Execution version of the PPA dated 28 May 2026, with Annexes 1 to 4. We have not reviewed earlier drafts.